



POLICE DEPARTMENT

May 1, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207967 (Incident Date: November 9, 2022) regarding Lieutenant William Rivera, Tax No. 946705 (DADS No. 2023-29615)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202207967, pertaining to Lieutenant William Rivera. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Lieutenant Rivera would be detrimental to the Police Department's disciplinary process.

The Police Commissioner has determined that Lieutenant Rivera's actions were within guidelines. On November 9, 2022 at approximately 1923 hours, Lieutenant Rivera responded to a 911 call at a residential apartment building in Manhattan. The 911 caller alleged that a male was displaying a badge, pretending to be a city employee, and was attempting to gain entrance to the building. When the tenant confronted the male suspect, he stated he was a city inspector. The 911 caller stated the male would not show his identification because she was recording him.

Upon Lieutenant Rivera's arrival, officers from the 25th Precinct had already stopped the male, who matched the description provided by the 911 caller. The Police Commissioner has determined after a review of the body worn camera footage, Lieutenant Rivera's sole objective was to verify the male's identity. Lieutenant Rivera detained the male for a reasonable amount of time to verify that the male was indeed an employee of the New York City Department of Housing and

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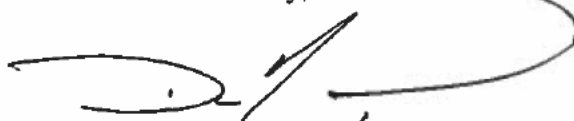
Website: <http://nyc.gov/nypd>

Preservation Development (HPD).

As Lieutenant Rivera first approaches the male, he asks for identification and explains he is not familiar with the badge the male is displaying. As he is conducting his investigation, Lieutenant Rivera asks what HPD is. Lieutenant Rivera then informs the male that the investigation could be conducted at the 25th Precinct to confirm his identification, rather than on scene. When Lieutenant Rivera makes this statement, he did not have enough evidence to establish whether or not the male was impersonating a city employee. The Police Commissioner has determined, the stop and questioning of the male was a permissible law enforcement activity. Unfortunately, there are instances where criminals impersonate legitimate government employees to enter an innocent person's home and commit crimes therein. Lieutenant Rivera took the proper steps, to ensure this was not the case, as a concerned citizen called because they were nervous to open their door for a stranger purporting to be a city inspector.

To issue discipline in this case, would not be in the interest of justice. Furthermore, Lieutenant Rivera has no prior substantiated CCRB's and no prior formal Department disciplinary history, in the course of his sixteen (16) year career. As provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Lieutenant Rivera for the substantiated allegations.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino'. The signature is stylized with a large, sweeping loop on the right side and a horizontal line extending to the left.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

May 7, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202207967 (Incident Date: November 9, 2022) involving Lieutenant William Rivera, Tax No. 946705 (DADS No. 2023-29615)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 1, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”).

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against Lieutenant Rivera would be detrimental to the Police Department’s disciplinary process. More specifically, you determined that Lieutenant Rivera acted within Police Department guidelines. Consequently, you concluded you would retain jurisdiction, and impose no disciplinary action against Lieutenant Rivera in connection with the above incident.

We disagree with your determination that Lieutenant Rivera’s conduct was within guidelines and did not warrant any penalty. Lieutenant Rivera encountered a scene where responding officers from the 25th precinct had already received credible information confirming § 87(2)(b) status as an inspector for the New York City Department of Housing Preservation and Development (hereinafter, “HPD”). Nonetheless, as detailed below, Lieutenant Rivera engaged in lengthy questioning and commentary that was neither necessary nor sufficient to authenticate § 87(2)(b) identity.

As an initial matter, when Lieutenant Rivera threatens to arrest § 87(2)(b) he is specifically responding to a discrete comment from § 87(2)(b) not merely questioning him during a routine investigation. Indeed, Lieutenant’s own statements, when taken in their totality, imply as much: After § 87(2)(b) rhetorically exclaims that the officer must be new, Lieutenant Rivera is depicted on his body-worn camera footage saying, “We can go back to the precinct and do this if you like. *Don’t be sarcastic, I’m asking you questions that are legitimate.* You may

know NYPD, but I don't know every agency on the planet, alright? Take [the identification card] out and your state ID." Lieutenant Rivera's Body Worn Camera Footage at 1:25 (emphasis added). Contrary to your characterization, Lieutenant Rivera's subsequent comments to § 87(2)(b) amounted to intimidation and an ultimatum, the clear evidence for his identity notwithstanding.

With respect to the second specification, Lieutenant Rivera unlawfully and unreasonably prolonged the stop of a civilian despite being confronted with every indication § 87(2)(b) was an HPD employee. Body-worn camera footage reveals that § 87(2)(b) displayed his HPD shield, provided his HPD work identification card, and verbally identified himself as a housing inspector for the assembled officers. There were other reliable avenues to verify § 87(2)(b) identity as well, including accessing 311 logs on his HPD cellular device (as § 87(2)(b) suggested), or conducting a DMV or other electronic record search of § 87(2)(b) pedigree and/or place of employment. Instead, Lieutenant Rivera engaged in a bizarre interrogation of § 87(2)(b) knowledge of his physical office place, questioning that was far and beyond the extensive, verifiable documentation the inspector had already provided. Notably, you are also silent about Lieutenant Rivera's repeated and baseless claims that § 87(2)(b) was impersonating a police officer: body worn camera depicts Lieutenant Rivera making said accusation two minutes after § 87(2)(b) had already accurately identified himself to the parties present. See Lieutenant Rivera's Body Worn Camera Footage. The record is devoid of any indication § 87(2)(b) made such misrepresentations in his conversation with the officers. Such evidence, while not tied to a specific allegation in the instant case, is indicative of the continued impropriety of the stop, and the bad-faith methods employed by Lieutenant Rivera during the encounter.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, The CCRB respectfully requests that you permit the disciplinary process against Lieutenant Rivera to proceed.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director, General Counsel
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 9, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207967 (Incident Date: November 9, 2022) regarding Lieutenant William Rivera, Tax No. 946705 (DADS No. 2023-29615)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 7, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Lieutenant William Rivera. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Lieutenant Rivera for the reasons expressed in my May 1, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office